

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

JOINT MOTION FOR ENLARGEMENT OF TIME FOR FILING EXCEPTIONS

Complainants, Ports America Chesapeake, LLC and Marine Terminals Corporation-East (collectively “Complainants”) and Respondent, APS East Coast, Inc. (“Respondent”) (each a “Party” and collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this Joint Motion for Enlargement of Time for Filing Exceptions.

Pursuant to 46 C.F.R. § 502.228 and §502.102, motions for enlargement of time, including those for the filing of exceptions to the Initial Decision, “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” The Initial Decision in this matter was served this Monday, December 16, 2024 (Doc. No. 47) and per 46 C.F.R. §

502.227, the corresponding date for filing exceptions is January 7, 2025. The Parties are reviewing the Initial Decision, analyzing their respective alternatives in light of the Initial Decision, and are also exploring the possibility of an efficient, mutually agreed resolution to the matter prior to the filing of exceptions.

However, in light of the holiday season and applicable travel plans, the time available for the Parties' respective leadership to analyze the matter and for the officers of the Parties to discuss the possible resolution of the matter is significantly limited. Accordingly, the Parties would require additional time to confer, both internally and between the Parties. In addition, the 41 page initial decision addresses several Shipping Act claims, involves a number of significant legal issues, as well as a substantial factual record. The Parties submit that the requested enlargement of time is reasonable under the circumstances and would promote judicial efficacy by allowing a potential opportunity for resolution of this matter without further burden on the Commission, and would allow for adequate time to prepare exceptions should the parties elect to so. The Parties further note that as of this writing the Congress has warned of a potential government shutdown; the requested enlargement of time would facilitate a potential resolution while avoiding the greater potential delay and uncertainty that would occur in the event of a government shutdown.

For the foregoing reasons, the Parties request an extension of one month (31 days), with any exceptions to the Initial Decision to be due on or before February 7, 2025. The Parties submit that the proposed extension would not cause undue prejudice or delay and this joint request is made jointly by the Parties in good faith.

Dated: December 20, 2024

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
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2. Hon. Richard C. Ambrow Jr. - *Administrative Law Judge*
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Dated: December 20, 2024

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